

Sri.G.Srinivas vs Smt.S. Anuradha on 10 March, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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M.F.A.No.7554 of 2015

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 10TH DAY OF MARCH, 2023
PRESENT
THE HON'BLE MR JUSTICE ALOK ARADHE
AND
THE HON'BLE MR JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.7554 OF 2015 (FC)

BETWEEN:

SRI. G. SRINIVAS
S/O GANAPATHI
AGED ABOUT 50 YEARS
OCCUPATION:
WORKING AS ASST.ELECTRICAL
ENGINEER AT CEE OFFICE, RWF,
RESIDING AT NO.438 EAST COLONY,
RAIL WHEEL FACTORY QUARTERS,
YELAHANKA,
BENGALURU-560064.

...APPELLANT

(BY SRI S.V.DESAI, ADVOCATE)

AND:

SMT. S. ANURADHA
D/O. D. SHIVANANDAN,
AGED ABOUT 49 YEARS
OCCUPATION: TEACHER AT
VIDYA SAGAR SCHOOL AT ATTUR,

RESIDING AT NO.532,
SAI NILAYAM
ATTUR LAYOUT, 5TH MAIN, YELAHANKA,
BENGALURU - 560064.

...RESPONDENT

(BY SRI. A.R.HOLLA, ADVOCATE)

THIS M.F.A IS FILED UNDER SECTION 19(1) OF FAMILY COURT ACT, AGAINST THE JUDGMENT AND DECREE DATED 30.07.2015 PASSED ON M.C.NO.3032/2012 ON THE FILE OF THE COURT OF THE PRINCIPAL JUDGE, FAMILY COURT, BANGALORE, DISMISSING THE PETITION FILED U/S 13 (1) (ia) & (ib) OF HINDU MARRIAGE ACT.

THIS APPEAL HAVING BEEN HEARD AND RESERVED ON 22.02.2023, COMING ON FOR PRONOUNCEMENT OF JUDGMENT, THIS DAY, VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1984, has been filed by the appellant/husband against the judgment and decree dated 30.07.2015 in M.C.No.3032/2012 passed by the Principal Judge, Family Court, Bangalore, by which the petition filed under Section 13 of the Hindu Marriage Act, 1955 (for short 'the Act'), seeking dissolution of marriage, has been dismissed.

2. Facts leading to filing of this appeal in a nutshell are that marriage between the parties was solemnized on 24.06.1991 at Bangalore as per Hindu rites and customs. Out of wedlock they were blessed with a baby girl. It was averred that the relationship between the appellant/husband and respondent/wife was cordial initially for about 2 to 3 years and thereafter, respondent/ wife started dominating, always used to quarrel and abuse the appellant/husband with filthy words. It was further averred that respondent/wife used to dislike the appellant's relatives and tried to avoid all family functions. It was averred that approximately 23 times she quarreled with him and voluntarily left the matrimonial home without informing him and she is not willing to rejoin him. It was further averred that several attempts to bring the respondent/wife back to matrimonial home, went in vain.

3. It was further averred that respondent/wife voluntarily left the matrimonial home on 18.05.2008 along with daughter with an intention to permanently reside with her parents. It was further averred that appellant/husband and his family members have made efforts to bring the wife to matrimonial home, but she has not agreed. It was further averred that respondent/wife is interested in money hence she filed O.S.No.4/2011 claiming maintenance of Rs.20,000/- per month, which is pending adjudication. It was further averred that respondent/wife filed complaint to the Commissioner of Police, Bangalore on 29.09.2010. It was further averred that on 20.10.2010 Family Counselling Centre Bangalore, issued notice to the appellant based on the complaint of respondent/wife and the same was replied. It was further averred that respondent filed another complaint on 12.02.2012 before the General Manager, Rail Wheel Factory (Indian Railways) Yelahanka Bangalore, and the said authority issued notice to him, which was replied by the appellant husband. It was further averred that respondent/wife tried maximum to harass the appellant/husband even at his work

place to spoil his reputation. It was further averred that on account of misbehaviour and non co-operation of the respondent/wife they are living separately for the last many years. The marriage has broken down irretrievably and therefore, the appellant/husband sought for a decree of divorce.

4. The respondent/wife entered appearance before the Family Court and filed statement of objections, opposing the petition by denying the averments made in the petition. The respondent/wife has admitted the relationship between the parties, however, she specifically denies the averment that she used to dictate terms to the appellant/husband and she denied the averment of cruelty. The respondent/wife averred that it is the appellant who used to harass the respondent by picking up quarrel. It was further averred that on 18.05.2008, after quarrelling with the respondent/wife the appellant/husband has driven the respondent/wife and her daughter out of the house. Since then they are staying with her parents. It was further submitted that she filed O.S.No.4/2011 seeking maintenance, she has admitted that she has filed the complaint to the various authorities against the appellant/husband. It was further averred that said complaints are filed with an intention to get justice and not to harass the appellant/husband and she denied that she is not responsible for the health issues of the appellant/husband and sought for dismissal of the appeal.

5. The Family Court recorded evidence of the parties. The appellant/husband examined himself as PW.1 and got marked documents Exs.P.1 to P13. The respondent/wife examined herself as RW.1 but no documents were marked. The Family Court by judgment dated 30.07.2015 inter alia held that appellant/husband failed to prove the grounds of cruelty and desertion. Accordingly, the petition was dismissed in the aforesaid factual matrix, hence this appeal.

6. Learned counsel for the appellant/husband submits that marriage between the parties was solemnized on 24.06.1991 at Bangalore and they led a happily married life for about 2 to 3 years and out of wedlock they were blessed with a baby girl. It is submitted that the appellant/husband used to take care of his wife and daughter in a decent and dignified manner, however, the respondent used to quarrel with him, used to create scenes without bothering the neighbourhood and used to abuse the appellant/husband in filthy and unparliamentary language. It is further submitted that with the intervention of well wishers, the respondent wife used to act normally for few days and again she used to quarrel with the appellant without any reasons. It was further submitted that respondent/wife used to avoid family functions and approximately 23 times she has quarreled with the appellant and abruptly left matrimonial home on 18.05.2008 along with daughter voluntarily and without informing the appellant. Despite all efforts made by the appellant/husband to bring her back, she has blatantly refused the same. It was further submitted that she initiated various proceedings and filed complaints before various authorities with an intention to harass the appellant/husband, hence the act of the respondent/wife amounts to mental cruelty and desertion.

7. Learned counsel for the appellant has relied on the following decisions :-

a. K. SRINIVAS RAO v.D.A. DEEPA (AIR 2013 SC 2176;) b. SUMAN KAPUR v.SUDHIR KAPUR (AIR 2009 SC 589;) c. SUJATA UDAY PATIL v.UDAY MADHUKAR PATIL (2007 AIR SCW 896;) d. GEETA JAGDISH MANGTANI v.

JAGDISH MANTANI (AIR 2005 SC 3508;) e. SMT SAVITHRI Vs. SRI S. RAVINDRA REDDY (ILR 2018 KAR 1368;) There is no dispute with regard to the law laid down by the Hon'ble Supreme Court and this Court referred supra. We need to examine the case on hand, based on the pleadings, evidence on record by applying the ratio laid down by the Hon'ble Courts.

8. Learned counsel for the respondent reiterated the averments made in the statement of objections. He admits the relationship between the parties, however, he has specifically denied the averments of cruelty. He submits that it is the appellant/husband, who caused cruelty on the respondent/wife and deserted her. He further submits that initiation of proceedings by the respondent/wife and filing of the complaint is for the purpose of getting justice and not with an intention to harass the appellant and therefore, prayed for dismissal of the appeal.

9. We have considered the submissions made by the parties and have perused the materials on record.

10. The appellant/husband has deposed that his wife treated him with cruelty and he has narrated some of the incidents, that the respondent/wife used to quarrel with him, used to behave rudely, refused to participate in family functions, she used to abuse him in unparliamentary words and used pick up quarrel without any reason and she quarrelled approximately 23 times with the appellant. It was further deposed that because of such act of the respondent, the appellant suffered from blood pressure and diabetes. It was further deposed that respondent/wife has initiated false legal proceedings and filed false complaints alleging domestic violence against the appellant/husband before the General Manager, Rail Wheel Factory (Indian Railways) and before the other authorities.

11. On meticulous examination of the petition averments, evidence of PW.1 and on perusal of Exs.P1 to P13, we are of the opinion, that the allegations are vague. The appellant/husband has not stated any specific instances of cruelty in his evidence. The initiation of legal

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proceedings and filing of the complaint by the respondent/ wife before the various authorities, ipso facto does not amount to mental cruelty unless the proceedings results in causing damage to the reputation and affect progress of the appellant/husband in his employment, hence it cannot amount to mental cruelty. On careful examination of evidence on record, it is evident that, based on the complaints and initiation of legal proceedings, no action is taken against the appellant/husband, and in none of the proceedings a finding is recorded that the proceedings are malicious and false. In the absence of any finding by those authorities, mere filing of complaint and initiation of legal proceedings for maintenance, which she is entitled under law otherwise, and mere filing of complaint with the employer of husband cannot be termed as mental cruelty against appellant/husband. Therefore, in our view, the Family Court was justified in appreciating the evidence on record insofar as ground for cruelty is concerned and we do not find any infirmity in the find of the Court below.

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12. The Hon'ble Supreme Court in the case of JOYDEEP MAJUMDAR Vs. BHARTI JAISWAL MAJUMDAR [(2021)3 SCC 742] has held at paragraphs 10 and 12 as follows:-

10. For considering dissolution of marriage at the instance of a spouse who allege mental cruelty, the result of such mental cruelty must be such that it is not possible to continue with the matrimonial relationship. In other words, the wronged party cannot be expected to condone such conduct and continue to live with his/her spouse. The degree of tolerance will vary from one couple to another and the Court will have to bear in mind the background, the level of education and also the status of the parties, in order to determine whether the cruelty alleged is sufficient to justify dissolution of marriage, at the instance of the wronged party. In Samar Ghosh Vs. Jaya Ghosh, this Court gave illustrative cases where inference of mental cruelty could be drawn even while emphasizing that no uniform standard can be laid down and each case will have to be decided on its own facts.

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12. When the appellant has suffered adverse consequences in his life and career on account of the allegations made by the respondent, the legal consequences must follow and those cannot be

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prevented only because, no Court has determined that the allegations were false. The High Court however felt that without any definite finding on the credibility of the wife's allegation, the wronged spouse would be disentitled to relief. This is not found to be the correct way to deal with the issue."

And in RANI NARASIMHA SASTRY Vs. RANI SUNEELA RANI (2020) 18 SCC 247 at paragraph 13 it is held as follows:-

"13. In the present case the prosecution is launched by the respondent against the appellant under Section 498-A of IPC making serious allegations in which the appellant had to undergo trial which ultimately resulted in his acquittal. In the prosecution under Section 498-A of IPC not only acquittal has been recorded but observations have been made that allegations of serious nature are levelled against each other. The case set up by the appellant seeking decree of divorce on the ground of cruelty has been established. With regard to proceeding initiated by respondent under Section 498-A of IPC, the High Court made following observation in paragraph 15:

"15.....Merely because the respondent has sought for maintenance or has filed a complaint against the petitioner for the

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offence punishable under Section 498-A of IPC, they cannot be said to be valid grounds for holding that such a recourse adopted by the respondent amounts to cruelty."

The above observation of the High Court cannot be approved. It is true that it is open for anyone to file complaint or lodge prosecution for redressal for his or her grievances and lodge a first information report for an offence also and mere lodging of complaint or FIR cannot ipso facto be treated as cruelty. But when a person undergoes a trial in which he is acquitted of the allegation of offence under Section 498-A of IPC, levelled by the wife against the husband, it cannot be accepted that no cruelty has meted on the husband. As per pleadings before us, after parties having been married on 14.08.2005, they lived together only 18 months and thereafter they are separately living for more than a decade now."

13. Insofar as ground for desertion the appellant specifically averred at paras 8, 10 and 15 of the petition filed before the Family Court that the respondent/wife voluntarily left the appellant/husband's house on 18.05.2008 with an intention to reside in her parents house and started living with them. The respondent/wife has denied the averment of desertion in her counter, it

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was averred that it is the appellant/husband who has driven her away from the house on 18.05.2008. The factum of leaving the matrimonial home by the respondent/wife on 18.05.2008 has not been disputed by both the parties in their respective evidence.

14. On careful examination of the evidence on record, now this Court is required to appreciate the evidence as to whether the respondent/wife has left the matrimonial home voluntarily or the appellant/husband has forcefully driven her out from the matrimonial home on 18.05.2008. PW.1 in his evidence has clearly stated that on 18.05.2008 the respondent/wife along with daughter has left the matrimonial home and started living with her parents. The evidence of PW.1 further disclose that appellant has made efforts to convince her and her parents to get her back to the matrimonial home, at that time, the respondent's parents warned the appellant/husband not to come to their house and not to talk to her. The respondent/wife has failed to get any contrary admission while cross examining PW.1. The respondent/wife has neither pleaded

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nor adduced any evidence to establish the fact that she made efforts to rejoin the matrimonial home after 18.05.2008 by sending legal notice to the appellant/husband asking him to take her back to matrimonial home or by filing the petition for restitution of conjugal rights, till date. Hence inference can be drawn that the respondent/wife left the matrimonial home voluntarily on 18.05.2008 with an intention of end the cohabitation permanently. The petition for dissolution of marriage was filed on 17.08.2012. In the instant case, the respondent/wife voluntarily deserted the appellant husband for more than four years prior to the filing of the petition for dissolution of

marriage clearly established the fact that the ground for desertion is made out. The Family Court has not appreciated the evidence of PW.1 insofar as ground for desertion in its proper prospective, hence the finding of the trial Court in arriving at the conclusion that appellant failed to prove the ground of desertion is perverse and contrary to the evidence on record. Hence calls for interference.

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15. Thus it is very clear that the respondent/wife has left the matrimonial home with an intention to end the marital relationship with the appellant/husband on 18.05.2008 and it is an admitted fact that the spouse are living separately for more than 14 years as of now and it is likely that there is no possibility for the couple to live together at this stretch of time. The appellant husband has proved the ground of desertion. It will be useful to refer to the decision of the Hon'ble Supreme Court in the case of DEBANANDA TAMULI Vs. KAKUMONI KATAKY (2022) 5 SCC 459 has held at para 7 as follows :-

"7. We have given careful consideration to her submissions. Firstly, we deal with the issue of desertion. The learned counsel appearing for the appellant relied upon the decision of this Court in Lachman Utamchand Kirpalani which has been consistently followed in several decisions of this Court. The law consistently laid down by this Court is that desertion means the international abandonment of one spouse by the other without the consent of the other and without a reasonable cause. The deserted spouse must prove that there is a

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factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. In other words, there should be animus deserendi on the part of the deserting spouse. There must be an absence of consent on the part of the deserted spouse and the conduct of the deserted spouse should not give a reasonable cause to the deserting spouse to leave the matrimonial home. The view taken by this Court has been incorporated in the Explanation added to sub-section (1) of Section 13 by Act 68 of 1976. The said Explanation reads thus:

Explanation : In this sub-section, the expression "desertion" means the desertion of the petitioner by the other party to the marriage without reasonable cause and without the consent or against the wish of such party, and includes the wilful neglect of the petitioner by the other party to the marriage, and its grammatical variations and cognate expressions shall be construed accordingly".

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And in the decision of SAVITRI PANDEY Vs. PREM CHANDRA PANDEY [(2002) 2 SCC 73] at paragraphs 9, 10 and 11, it is held as follows:-

"9.Following the decision in Bipinchandra's case (supra) this Court again reiterated the legal position in Lachman Utamchand Kirpalani v. Meena alias Mota [AIR 1964 SC 40] by holding that in its essence desertion means the intentional permanent forsaking and abandonment of one spouse by the other without that other's consent, and without reasonable cause. For the offence of desertion so far as deserting spouse is concerned, two essential conditions must be there (1) the factum of separation and (2) the intention to bring cohabitation permanently to an end (animus deserendi). Similarly two elements are essential so far as the deserted spouse is concerned: (1) the absence of consent, and (2) absence of conduct giving reasonable cause to the spouse leaving the matrimonial home to form the necessary intention aforesaid. For holding desertion proved the inference may be drawn from certain facts which may not in another case be capable of leading to the same inference; that is to say the facts have to be viewed as to the purpose which is revealed by those acts or by conduct and expression of intention, both anterior and subsequent to the actual acts of separation.

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10. To prove desertion in matrimonial matter it is not always necessary that one of the spouse should have left the company of the other as desertion could be proved while living under the same roof. Desertion cannot be equated with separate living by the parties to the marriage. Desertion may also be constructive which can be inferred from the attending circumstances. It has always to be kept in mind that the question of desertion is a matter of inference to be drawn from the facts and circumstances of each case.

11. There is another aspect of the matter which disentitles the appellant from seeking the relief of divorce on the ground of desertion in this case. As desertion in matrimonial cases means the withdrawal of one party from a state of things, i.e., a marital status of the party, no party to the marriage can be permitted to allege desertion unless he or she admits that after the formal ceremonies of the marriage, the parties had recognised and discharged the common obligation of the married life which essentially requires the cohabitation between the parties for the purpose of consummating the marriage. Cohabitation by the parties is an essential of a valid marriage as the object of the marriage is to further the perpetuation of the race by permitting lawful indulgence in passions for procreation of children. In other words, there can be no desertion without

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previous cohabitation by the parties. The basis for this theory is built upon the recognised position of law in matrimonial matters that no-one can desert who does not actively or wilfully bring to an end the existing state of cohabitation. However, such a rule is subject to just exceptions which may be found in a case on the ground of mental or physical incapacity or other peculiar circumstances of the case. However, the party seeking divorce on the ground of desertion is required to show that he or she was not taking the advantage of his or her own wrong."

14. For the aforementioned reasons the instant appeal is allowed and impugned judgment dated 30.07.2015 passed in M.C.No.3032/2012 on the file of the Principal Judge, Family Court, Bangalore, is hereby set aside and the marriage between the parties is dissolved by a decree of divorce on the ground of desertion.

Sd/-

JUDGE Sd/-

JUDGE NG CT: SV